

# HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ETHIOPIA

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## Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Ethiopia, grounded in the Environmental and Social Impact Assessment system, the Environmental Protection Authority and the regional environmental agencies, the constitutional protections on land and eviction, and the compensation and resettlement law

*This guide uses the Ethiopian legal terms you will actually encounter (the ESIA Proclamation and its clearance certificate, the EPA and the regional environmental agencies, the Environmental and Social Management Plan, Article 40 of the Constitution and the state ownership of land, "holding" rights, the Expropriation Proclamation and "public purpose", and the federal-regional division of power), each explained in plain language where it first comes up.*

**A note on terms.** Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Where a term is Ethiopian, the everyday word is used alongside it.

**A note on land, which is different here.** In Ethiopia **no one privately owns land** — under the Constitution, land is owned by the state and the peoples of Ethiopia and cannot be sold. What people hold is a **"holding" or use right**, and rural farmers and pastoralists have constitutional protection against arbitrary eviction. But that same state ownership makes it easier for government to take land for "public purpose", and compensation is widely documented as too low. Understanding this is the whole game: your rights run through the **use-right, the eviction protections, the compensation and resettlement rules, and the environmental assessment**, not through a land title.

**A note on realism, up front.** Ethiopia's environmental law is real and was strengthened in 2025, and the constitution contains genuine protections. But civic space is constrained, many large projects are state-driven, "public purpose" is broad and its use cannot easily be appealed, and enforcement is uneven — federal versus regional, region to region. This guide treats those facts as the terrain and steers you toward the levers that still work.

**A note on safety.** In parts of Ethiopia, and on some projects, opposing a development can carry real personal risk. Nothing here is worth harm to you. Prefer the documentary and legal routes — the assessment, the compensation claim, the courts and the ombudsman — over anything that exposes named individuals, and read Section 13 before acting where a project is state- or security-linked.

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## INTRODUCTION & FRAMEWORK

### Why This Matters

Ethiopia is building at extraordinary speed — dams and reservoirs, vast sugar and commercial-farming schemes, industrial parks, roads and railways, urban expansion around Addis Ababa and the regional cities, mines and energy projects. Much of it is state-driven, and much lands hardest on those least able to resist: smallholder farmers and pastoralists whose **holding rights** are extinguished, communities displaced with compensation that does not sustain them, rivers and wetlands altered, forests and grazing land cleared. When people ask whether anything can be done, the honest answer is: **sometimes — but only if you use the specific machinery the law provides, and understand where that machinery stops.**

That machinery exists, and it was recently strengthened. In 2025 Ethiopia replaced its long-standing Environmental Impact Assessment Proclamation (No. 299/2002) with a new **Environmental and Social Impact Assessment (ESIA) Proclamation** — broadening the old environmental focus to include **social, economic and cultural** impacts, and making an **ESIA clearance certificate a mandatory precondition** for projects in the categories it covers. That certificate must be obtained from the federal **Environmental Protection Authority (EPA)** or the relevant **Regional Environmental Agency** before the project proceeds — and, crucially, **key licensing bodies, including the Investment Commission, the trade ministry and the energy authority, must see a valid ESIA certificate before they issue or renew a licence.** The law also requires **meaningful, documented public consultation**, periodic updating of the **Environmental and Social Management Plan**, and audits. That pre-licence certificate is the single most important lever in this guide: it is a real gate, and the moment before a project passes through it is when your community has the most power.

Your other great source of leverage is the **Constitution**. Under **Article 40**, land is owned by the state and the peoples of Ethiopia and cannot be sold — but farmers and pastoralists hold protected **use rights**, the Constitution guarantees them **against arbitrary eviction**, and any public-purpose expropriation must be accompanied by compensation paid **in advance** and by support to **resettle** the displaced. Citizens also have full rights to the **buildings and improvements** they create on the land. These provisions are routinely under-honoured in practice — but they are real legal standards you can hold the government to.

**The honest counterweight, stated plainly.** The tilt here is severe. All land is **state-owned**, which makes taking it easier. **"Public purpose" is defined broadly** — broadly enough to include handing land to private commercial investors — and, critically, **the landholder generally cannot appeal the "purpose"** of an expropriation, only, at most, the amount of compensation. Compensation is widely documented as **inadequate to sustain life after eviction**. Civic space is constrained, protest can be risky, and many of the largest projects are national priorities the government defends firmly, labelling opposition as politically motivated. Enforcement of the environmental law is uneven. None of this makes opposition pointless — but it means the **compensation-and-resettlement claim, the assessment, and the courts** matter far more than street mobilisation, and that the realistic goal is often a better outcome rather than a stopped project.

**What "winning" realistically means.** Rarely the outright cancellation of a flagship national project. More often: **higher and properly-paid compensation**; genuine **resettlement and rehabilitation** instead of bare eviction; a project **redesigned** to reduce displacement or environmental harm; an assessment **redone** after being exposed as inadequate; **conditions, mitigation and monitoring** written into the ESIA clearance; a project **delayed** while the assessment or compensation is contested; a **private or investor project relocated or stopped** where it lacks a lawful certificate or takes land unlawfully; and, where a project is internationally financed, **binding safeguards and an independent complaints process** that domestic routes cannot match.

## The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — establish the developer, the licensing body, and whether an ESIA certificate exists.
2. **Documentation** — build a technical, legal and compensation record strong enough for the authorities, the courts and any lender.
3. **Local opposition** — organise carefully and lawfully, around those with holding rights.
4. **Legal challenges** — the assessment, the compensation and resettlement, and the courts.
5. **Media strategy** — coverage that raises the cost of a visibly unlawful or damaging decision.

No single step wins alone. Here the combination that works is **a compensation-and-assessment challenge, built on the constitutional protections and carried by the people with holding rights.**

## Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Ethiopia's system is tilted toward development and the state, and land ownership sits with the state. Assessing that honestly is what lets you pick the right tools: the strongest routes here are **the mandatory ESIA certificate, the constitutional eviction and compensation protections, the resettlement duty, and an international lender's safeguards** where a project is financed. A tilt changes which lever works; it rarely removes them all. Section 13 is candid about what this system cannot do — especially against flagship state projects and where "public purpose" is invoked.

## How to use this guide

Read Sections 1–3 once, and Section 4 immediately — identifying the developer, the licensing body and the assessment status determines everything else. Sections 5–7 run in parallel. Sections 9–11 are reference material. Section 12 puts it on one timeline; Section 13 tells you honestly what this system cannot do, and how to stay safe.

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## HOW THE SYSTEM WORKS

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Before you can fight a project you must know who decides it, how, and the words the system uses. Ethiopia is a **federation**: power over land and environment is split between the federal government and the regional states, and that division shapes who you deal with.

### The Bodies That Decide — And What Each One Controls

**The Environmental Protection Authority (EPA).** The federal environmental regulator, an autonomous body responsible at the highest level of government. It issues the **ESIA clearance certificate** for projects within federal competence, sets the rules and guidelines, accredits the professionals who prepare assessments, and conducts audits. For a large or cross-regional project, the EPA is where the environmental decision is made.

**The Regional Environmental Agencies.** Each regional state has its own environmental agency (or designated body) handling assessment and clearance within the region's competence. **Which one is "yours" depends on the project's scale and location** — many projects are regional, and the regional agency is then your counterpart. Their quality and independence varies by region, which is itself worth knowing.

**The licensing and sector bodies.** The **Ethiopian Investment Commission**, the **Ministry of Trade and Regional Integration**, the **Petroleum and Energy Authority** and other sector regulators issue the licences that let a project proceed. Under the new law they must see a **valid ESIA certificate** before issuing or renewing one — a pressure point: no valid certificate should mean no lawful licence.

**The land administration and expropriation authorities.** Land is allocated, and expropriation and compensation carried out, by **regional and city land administration bodies** and the **woreda** (district) and **kebele** (local) authorities, under the **Expropriation Proclamation** and the regional land laws. These bodies value land, pay compensation and carry out resettlement — and are where the compensation fight is fought.

**The compensation and grievance committees.** Expropriation law provides for **compensation assessment** and for **committees that hear grievances** about the amount — a formal, usable channel, and the place where the **amount** can be contested even though the **purpose** usually cannot.

**The courts.** Ethiopia's regular courts hear disputes over compensation, the lawfulness of eviction, and property and improvement rights. They are constrained in politically sensitive matters, but for compensation and clear procedural breaches they are a genuine route.

**The Human Rights Commission and the Ombudsman.** National institutions that can investigate maladministration, rights violations and displacement. Their powers are limited, but a complaint creates an official record and can bring scrutiny.

**Which one is "yours"?** Ask: which body is the **developer** — a federal ministry, a regional government, a state enterprise, or a private/foreign investor? Which authority issues the **ESIA certificate** — the federal EPA or a regional agency? Which body runs the **land administration and compensation**? Is there an **international lender**? And is the taking framed as "**public purpose**"? Pinning this down is Step 1.

### How a Decision Is Actually Made — The Journey of a Project

Under the ESIA Proclamation, the Constitution and the Expropriation Proclamation the path is roughly:

1. **The pre-licence assessment duty.** A project in a covered category needs an **ESIA clearance certificate** from the EPA or the regional agency **before** it is implemented, and before the sector regulator issues a licence. No certificate, no lawful licence.
2. **Screening and scoping.** The authority sets the level of assessment by the project's nature, technology, location and scale, and what the study must cover. The guidelines list the sectors requiring assessment — agriculture, industry, transport, mining, dams and reservoirs, and others.
3. **The assessment itself.** Prepared by an **accredited professional at the proponent's cost**, evaluating environmental **and now social, economic and cultural** impacts, examining **alternatives**, and setting out an **Environmental and Social Management Plan** of mitigation, monitoring and responsibilities.
4. **Public consultation.** The law requires **meaningful, documented public consultation** with affected communities and the recording of how their concerns were addressed. Absent or token consultation is a defect.
5. **The clearance decision.** The authority issues, conditions, or refuses the **ESIA certificate**. The certificate carries **ongoing obligations** — annual renewal, periodic updating of the management plan, and audits — so compliance is a continuing question, not a one-off.
6. **Land, expropriation and compensation.** Where land is taken, the authority must act for a **public purpose**, pay compensation **in advance**, compensate for **improvements and displacement**, and provide **resettlement**. The **amount** can be grieved; the **purpose** generally cannot be appealed.
7. **Implementation, audit and enforcement.** The project must honour its management plan and certificate conditions; audits and updates are required; violations can be acted on by the authority.

## The Rulebook — The Provisions That Decide the Outcome

- **The ESIA Proclamation (2025, replacing 299/2002)** — the mandatory pre-licence **clearance certificate**, the broadened social/economic/cultural scope, the **management plan, public consultation**, accreditation, renewal and audits.
- **The Constitution, Article 40** — state ownership of land; protected **holding rights; protection against arbitrary eviction; advance compensation** for public-purpose expropriation; and full rights to **buildings and improvements**.
- **The Constitution, Article 44** — the right to a clean and healthy environment, and to **resettlement or compensation** for those displaced by development.
- **The Expropriation Proclamation (455/2005) and its regulations** — "public purpose", compensation assessment, displacement compensation, and resettlement.
- **The Rural Land Administration and Use Proclamation (456/2005) and the regional land laws** — how holding rights are administered, registered and protected.
- **The Urban Land Lease Proclamation (711/2011)** — urban land and lease rights.
- **The lender's safeguards**, where a project is financed by the World Bank, the African Development Bank or another institution — often the strongest external standard.

## Follow the Money — Why the System Often Leans Toward "Yes"

Understanding the pressures is targeting, not cynicism. Large projects are national priorities, tied to investment, energy, industrialisation and agricultural commercialisation. State ownership of land lets the government allocate it to investors cheaply, and **"public purpose" is applied broadly, including for private commercial projects**. Assessments are paid for by the proponent, compensation is kept low, and the government treats major projects as matters of national interest and defends them firmly. None of this is unlawful in itself, but it explains why the **certificate, the constitutional protections, the compensation claim and any lender** are the levers that actually bite — and why arguments framed in **law and the assessment**, not politics, travel furthest.

## The Overseers — Who Watches the Decision-Makers

- **The EPA and the regional agencies** — assessment, clearance, audits and compliance.
- **The courts** — compensation disputes, unlawful eviction, and procedural breaches.
- **The compensation and grievance committees** — the amount of compensation.
- **The Ethiopian Human Rights Commission and the Ombudsman** — maladministration and rights, within limits.
- **The federal-regional division** — sometimes a check, holding a regional body to a federal standard.
- **International lenders and their safeguards** — where a project is financed, the bank's environmental and social standards and its **independent complaints mechanism** are often the strongest, and safest, external route.

Naming and using the right body matters. Here the most consequential early judgment is usually **who the developer is, whether a valid ESIA certificate exists, and whether the compensation and resettlement obligations are being honoured**.

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# QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns from how Ethiopian and comparable campaigns tend to go, not a controlled study. Use them to prioritise effort. As in every constrained system, the decisive variable is not in the table: **who the developer is, and whether "public purpose" has been invoked**. Against a private or investor project without a lawful certificate, the levers below work much as shown. Against a flagship state project taken for public purpose, discount every figure and read Section 13 first.

## Individual Step Success Rates

| Approach                                    | Success Rate | Timeline      | Cost         | What "Success" Means                                    |
|---------------------------------------------|--------------|---------------|--------------|---------------------------------------------------------|
| Documentation only                          | 5-10%        | 1-3 months    | low          | Basis for every other step                              |
| Public opposition only                      | 5-15%        | 3-18 months   | low          | Attention; limited alone, and risk-bearing              |
| Objection during the ESIA                   | 20-40%       | during review | low          | On record; can force conditions or a redo               |
| Compensation grievance                      | 25-45%       | 2-12 months   | low          | Higher, properly-paid compensation                      |
| No-valid-certificate challenge              | 20-40%       | 1-6 months    | low          | Licence blocked; project paused                         |
| Resettlement / Article 44 claim             | 15-35%       | 3-18 months   | low          | Resettlement and rehabilitation honoured                |
| Court challenge (compensation/eviction)     | 20-40%       | 6-30 months   | moderate     | Award increased; unlawful eviction checked              |
| Development-bank complaint (if financed)    | 25-45%       | 3-18 months   | low          | Independent review; conditions; leverage                |
| Human Rights Commission / Ombudsman         | 10-25%       | 3-18 months   | low          | Record; scrutiny; occasional remedy                     |
| All steps combined (private developer)      | 35-55%       | 12-30 months  | low-moderate | Relocated, redesigned, compensated, delayed, or stopped |
| All steps combined (flagship state project) | 10-25%       | 12-36 months  | low-moderate | Better compensation, resettlement, mitigation, delay    |

**Key insight:** all steps together beat any single one — but the ceiling depends decisively on the developer and on whether the taking is "public purpose". The system's real strengths are the **mandatory ESIA certificate**, the **constitutional protections against arbitrary eviction**, the **advance-compensation and resettlement duties**, and the **grievance channel over the amount**. Its real constraints are **state land ownership**, a **broad public-purpose power with no appeal of the purpose**, **low compensation**, and a **constrained civic space**. Where a project is internationally financed, the lender's safeguards and complaints mechanism can outperform every domestic route.

*A note on cost: objecting, grieving compensation and complaining are inexpensive. The expenditure that changes outcomes is a lawyer experienced in land and compensation cases and, where possible, a technical or valuation expert. Both are worth prioritising.*

## Effectiveness Visualization

SUCCESS PROBABILITY (better compensation, resettlement, redesign, conditions, delay -- or, for private projects, stopped)

PRIVATE / INVESTOR PROJECT, no valid certificate or unlawful taking, credible file, competent counsel, some external attention:

All steps combined: 35-55%  
 Compensation + certificate: 25-45%  
 Court challenge: 20-40%  
 Single step: 5-45%

FLAGSHIP STATE PROJECT taken for "public purpose", constrained civic space:

All steps combined: 10-25%  
 Development-bank complaint: 10-30% (only if financed)  
 Compensation / resettlement: 10-25%  
 Single step: 2-10%

**How to read this honestly.** The arguments that move outcomes here are **legal, technical and compensation-based, never political**. The strongest: a project proceeding **without a valid ESIA certificate**; an assessment that **omits alternatives or the social and economic impacts** the new law requires; **consultation** absent or token; **compensation** below the legal standard or unpaid in advance; **resettlement** promised by the Constitution but not provided; **eviction** without lawful process; and a taking dressed as "public purpose" that is in truth a **private commercial handover**. What will not work is framing the fight as opposition to the government or its development path. Keep every argument inside the language of the proclamations and the Constitution, and success becomes measurable in **compensation, resettlement, conditions, siting and delay**.

## Step Importance Ranking (When All Combined)

1. **Legal and compensation challenges** — the certificate, the compensation, the resettlement, and the courts.
2. **Documentation** — because only a rigorous record survives valuation disputes and litigation.
3. **The certificate and consultation arguments** — high-value and reliably winnable.
4. **The development-bank route** — decisive where the project is internationally financed.
5. **Media and institutional complaints** — which raise the cost of a visibly unlawful decision, used carefully.

Winning Ethiopian campaigns combined a compensation and resettlement claim, an assessment objection, the constitutional protections, standing through holding rights, and — where available — an international lender's safeguards, all kept lawful and documentary.

## What Ethiopian Campaigns Actually Show

A few patterns recur. **The certificate is now a real gate.** The new ESIA Proclamation makes a clearance certificate a precondition for licensing, so a project without one — or a licence issued without sight of one — is legally exposed. **Compensation is where most is won.** The purpose of a taking is hard to challenge, but the **amount and the manner** of compensation, and the **resettlement duty**, are contestable, and this is where communities most often improve their position. **The constitutional protections are real but under-honoured.** Article 40's guarantee against arbitrary eviction and its advance-compensation requirement, and Article 44's resettlement duty, are genuine standards the government routinely under-delivers — which is exactly why holding it to them has purchase. **Consultation is often the weak point.** The new law requires meaningful, documented consultation; where it was skipped or staged, that is a clean ground. **International finance changes the game.** Where the World Bank, the African Development Bank or another lender funds a project, its standards and complaints mechanism have repeatedly delivered scrutiny, resettlement and conditions beyond domestic reach. **And the developer's identity sets the ceiling.** Private projects on weak ground can be genuinely stopped; flagship state projects taken for public purpose are usually, at best, better-compensated, resettled, mitigated or delayed. The through-line: **fight on the certificate, the compensation and the constitution, use the courts and any lender, and calibrate the goal to who is building.**

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## STEP 1: TARGET IDENTIFICATION

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You cannot fight what you have not precisely identified. Answer five questions in a shared document — this becomes the campaign's factual spine, and the start of a file that could sit before a court or compensation committee.

### Core Questions You Must Answer

#### Question 1: What Exactly Will Be Destroyed?

Get specific: exact location and extent, project type and stage, and what is there now — farmland and grazing land held under **use rights**; homes, and the **buildings and improvements** people have made (which carry their own compensation rights); pastoralist territory; rivers, wetlands and forests; water sources and irrigation; and heritage or sacred ground. Establish who holds and uses the land, and under what registration. Obtain the ESIA if you can, and list every impact it admits, with the page reference.

#### Question 2: Who Has Decision-Making Power?

Identify precisely: (a) the **developer** — federal ministry, regional government, state enterprise, or private/foreign investor; (b) the **ESIA authority** — the federal EPA or the regional agency; (c) the **land administration and compensation body** — regional, city, woreda or kebele; (d) whether an **international lender** is financing it; and (e) whether the taking is framed as "**public purpose**", which shapes what you can and cannot appeal.



### Question 3: What Specific Action Stops It?

Realistic outcomes include: the project **blocked or paused** for lack of a valid ESIA certificate; **compensation increased** and properly paid in advance; genuine **resettlement and rehabilitation** secured under Article 44; the assessment **redone** after alternatives, social impacts or consultation are shown missing; **conditions and monitoring** imposed; a **development-bank review** forcing changes; **eviction halted** where the process was unlawful; or, for a clearly unlawful private project, a **stop**. Map them and pursue at least two.

### Question 4: When Is the Decision Final?

Diarise the deadlines. The **ESIA certificate** stage is the key window — once it issues and the licence follows, you are contesting rather than objecting. **Compensation** has its own assessment and grievance timetable, often short. **Eviction notices** carry their own (often very short) periods. And a **court challenge** must be filed within the applicable limitation period. **See a lawyer about deadlines the moment a certificate, compensation offer or eviction notice appears** — not later.

### Question 5: Are There Documented Financial or State Interests?

Map, carefully: who is behind the project and who profits; whether land is taken for a **private investor** under the banner of "public purpose"; whether a **state enterprise or federal priority** is involved; whether an **international lender** is funding it; and what officials have said publicly. Use public sources — the Negarit Gazeta and regional gazettes, EPA and investment records, lender disclosure, company filings — and build a dated timeline. Where the interests are state or security-linked, be cautious about what you publish and about naming individuals.

**Output of Step 1:** a one-page fact sheet with the project's description and location, the developer and its nature, the ESIA authority and certificate status, the land and compensation body, any lender, whether "public purpose" is invoked, and every deadline.

### Worked example: which lever is actually open

Suppose a private agribusiness is allocated a large block of land for a commercial plantation, displacing smallholders and grazing. Working the questions: **Q1** — you record the holdings, the improvements people have made, the grazing routes and water sources, and who holds each parcel. **Q2** — the developer is a **private investor**, not the state, which matters enormously; you identify the regional environmental agency as the ESIA authority and the woreda land body as the compensation authority. **Q3** — the decisive early facts are two: does the project actually **hold a valid ESIA certificate** (if not, the licence is exposed), and is the **compensation** at or below the legal standard? The live arguments become the missing or inadequate certificate, the low compensation, the absent resettlement, and — powerfully — that a **taking for a private plantation is being dressed as "public purpose."** **Q4** — you find the certificate status and any compensation offer or eviction notice, and see a lawyer about deadlines immediately. **Q5** — you check for an **international lender**, because a financed agribusiness brings the bank's land and resettlement safeguards into play. Within an afternoon you know that **the certificate, the compensation and the constitution are the campaign, the developer's private status means the courts and the "public purpose" argument are genuinely open, and a lender — if any — is your strongest external ally.**

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## STEP 2: DOCUMENTATION

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Documentation matters more in Ethiopia than almost anywhere. Your ultimate audience is often a **court or a compensation committee**, which decides on record and valuation, not sentiment; and because organising openly can carry risk, a strong **paper case** is both safer and more effective than a large public campaign. A precise, referenced file — especially on land, improvements and compensation — is your best weapon and your best protection.

### The Three Documentation Layers

#### LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project, from sources you can stand behind.

**Holdings and improvements.** The heart of an Ethiopian file. Document each affected **holding** — who holds it, its registration and use — and, critically, the **buildings, trees, wells, terraces and other improvements** people have

made, because these carry constitutional compensation rights independent of the land. Photograph and list them with dates; they are the basis of the compensation claim.

**Livelihoods and land use.** Document farming, grazing routes, pastoralist territory, irrigation, water sources and seasonal use — the things that determine both displacement impact and compensation.

**Environment.** Document rivers, wetlands, forests, soils and habitat at risk; downstream and water impacts; and any protected area or species — cite measurements and studies, not assertion.

**Heritage and sacred ground.** Document any heritage, burial or sacred sites affected; these carry weight and are now within the ESIA's broadened social and cultural scope.

**How to hold it.** Keep a referenced file with dates, sources and geolocated photographs where safe. Everything you assert should be traceable to a document, a measurement, or a named person's holding. Assume the file may be read by a court, a valuer, a lender and your opponents.

## LAYER 2: PROJECT AND PROCESS ANALYSIS

Show whether the project is lawful and whether the assessment and compensation are adequate. Catalogue four things:

1. **The certificate, and whether it exists and is valid.** Establish whether a **valid ESIA clearance certificate** was obtained from the EPA or the regional agency **before** licensing. A project without one, or a licence issued without sight of one, is legally exposed — often the single strongest point.
2. **The assessment's adequacy.** Test the ESIA against the new law: does it genuinely assess **social, economic and cultural** impacts, not just environmental ones? Does it examine **alternatives**? Is there a real **Environmental and Social Management Plan** with defined mitigation, monitoring and responsibilities? Is the baseline real or generic?
3. **Consultation.** The law requires **meaningful, documented public consultation** with a record of concerns and responses. Was it done, was it genuine, and were the community's concerns addressed? Absent or token consultation is a clean defect.
4. **Compensation, resettlement and eviction.** Was compensation assessed at the legal standard, including **improvements and displacement**, and paid **in advance**? Was **resettlement** provided as Article 44 requires? Was any eviction carried out with lawful process and notice? Each is a potential ground.

**Get expert eyes on it.** Two kinds of expert matter: a **valuation expert** who can show compensation is below standard, and a **technical expert** (environmental scientist, hydrologist or agronomist) who can show the assessment is inadequate. A short, signed critique from either is worth more than any amount of general objection. Where a lender is involved, its published standards give you a second, external checklist — especially on land acquisition and resettlement.

## LAYER 3: HUMAN AND INSTITUTIONAL IMPACT DOCUMENTATION

Record the human stakes — carefully, and with consent. Document, where people are willing: livelihoods lost (farming, grazing, water); homes and improvements destroyed; communities displaced and where they end up; health and food-security effects; and heritage and social fabric affected. Two cautions specific to Ethiopia: **obtain genuine consent before recording anyone's testimony or image**, because exposure can carry risk; and **frame harm in legal and compensation terms** — inadequate compensation, absent resettlement, unlawful eviction, breach of the assessment law — rather than as political grievance, both because that is what courts and committees act on and because it is safer.

Package this layer twice: a **rigorous legal-and-valuation version** for the authorities, the courts and any lender, and a **short public version** for careful, lawful media use.

## How to Structure Your Documentation

- **Phase 1: Baseline (Weeks 1-4)** — holdings, improvements, livelihoods, environment and heritage.
- **Phase 2: The project file (Weeks 2-6)** — certificate status, the ESIA, compensation and resettlement.
- **Phase 3: Expert critique (Months 2-3)** — the valuation and technical annexes, and the lender-standards checklist if applicable.
- **Phase 4: Follow-through (ongoing)** — certificate conditions, audits, compensation payment, and the court timeline.

## Common Documentation Pitfalls (What Fails)

- **Framing it politically** — courts and committees act on law and valuation; political framing also raises personal risk.
- **Missing the deadlines** — the certificate stage, the compensation grievance window and eviction notices are short.
- **Under-documenting improvements** — the buildings, trees and works you fail to record are compensation you lose.



- **Recording people without consent** — a safety failure as much as a documentation one.
- **Assertion without source** — one unsupported claim can sink a court or valuation file.
- **Ignoring the lender** — where a project is financed, its resettlement standards are among your strongest tools.

## Documentation Budget Breakdown

| Item                               | Low (volunteer/community) | Higher (with counsel) |
|------------------------------------|---------------------------|-----------------------|
| Holdings & improvements inventory  | community/volunteer       | modest                |
| Certificate & ESIA requests        | minimal                   | modest                |
| Signed valuation / technical annex | sometimes free            | moderate              |
| Mapping & geolocated photos        | volunteer                 | moderate              |
| Lawyer (compensation/land)         | —                         | main cost             |
| Translation for a lender           | modest                    | moderate              |

Most of this is inexpensive. Concentrate resources on a **land-and-compensation lawyer** and a **valuation expert**.

## WHAT TO GATHER, AND WHERE TO FIND IT

Most of what decides an Ethiopian case is a document — a holding record, a certificate, a compensation assessment — and knowing which, and how to ask, is half the battle.

**The ESIA and the certificate.** The assessment, its scope, its management plan, and the **clearance certificate** and its conditions. Request them from the **EPA** or the **regional environmental agency**; where a lender is involved, the ESIA is often **published by the bank** — frequently the easiest way to obtain it.

**Holding and land records.** Your **land-holding certificates and registration**, and the regional land-administration records — the foundation of both standing and compensation. Where registration exists (many regions have run titling programmes), obtain it.

**The compensation assessment and offers.** The valuation, the offer, and the basis of calculation — essential to showing it falls below the legal standard, and to the grievance.

**Expropriation and eviction papers.** The expropriation decision, the stated **public purpose**, the notice, and the resettlement plan (or its absence).

**The gazettes.** Proclamations, regulations, land allocations and declarations — the federal **Negarit Gazeta** and the regional gazettes.

**Lender disclosure.** Where an international bank finances the project, its **project page** typically publishes the environmental and social assessment, the **resettlement action plan**, and its **independent complaints mechanism** — a rich, reliable and safe source, especially strong on land and resettlement.

**How to force a document open.** Ethiopia lacks a strong general freedom-of-information regime in practice, so use the routes that exist: a **formal written request** to the EPA or regional agency and the land body; the **compensation grievance process**, which surfaces the valuation; **lender disclosure**, often the most productive of all; the **Human Rights Commission or Ombudsman**, which can prompt disclosure; and, once litigation begins, **disclosure through the court**. Keep proof of every request.

**Free and low-cost help.** Legal-aid and land-rights initiatives; university law and environment faculties; the land-governance forums; and — for financed projects — the lender's accountability office. **Where a competent land-and-compensation lawyer will take the case, that is the single highest-value step.**

**Tie it to the map.** The projects and units shown here are your starting index: a mapped project points you to the authority and the assessment that governs it, and from there to the documents that decide the case.

## Researchers for Hire, and Everyday Research Tools

If digging through corporate filings, agency files and environmental records is beyond a few volunteers, you can hire it out

— and this lifts a real weight off novice activists. The field is **opposition research** (or, on the labour side, **corporate-campaign research** — the same methods unions use to expose an employer's finances and record, turned on a developer). For your side, seek **opposition-research firms**, **licensed private investigators** with paid records access, **investigative journalists and freelancers** (often the cheapest, and they publish what they find), **environmental-compliance auditors** to dissect a developer's regulatory record, and **public-records / freedom-of-information specialists** to pry files loose. The investigative tools they use — and that a determined activist can use directly — include **OpenCorporates** and **OCCRP Aleph** (company ownership and cross-border links, worldwide) and **DocumentCloud** (search and OCR large document dumps), with **SEC EDGAR**, **LittleSis** and **MuckRock** as United States examples; most countries have their own equivalents.

For everyday, subject-agnostic research, a small kit goes far: **AI assistants** — Claude.ai, ChatGPT, Google Gemini, and Perplexity for sourced answers — are excellent for explaining a law, summarising a document, or drafting, so long as you **always verify** what they tell you, because they can invent citations; **Google Scholar** and Google's advanced search operators for studies and buried files; and the **Wayback Machine** for pages a developer or agency has quietly deleted.

## STEP 3: BUILDING LOCAL OPPOSITION

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### Critical Insight About Organizing

Organising in Ethiopia requires a careful balance. Civic space is constrained, protest can carry real personal risk — especially against state projects and in sensitive regions — and the state owns the land itself. This does not mean you cannot organise: it means the safest and most effective organising is **quiet, lawful, documentary, and built around the people with holding rights and compensation claims**, not loud confrontation.

Three principles carry special weight. **Law and compensation over confrontation**: every action framed as a lawful use of the assessment, compensation and constitutional protections is both more effective before courts and committees and far safer than political protest. **Organise around holding rights**: the people with clear standing — the **holders whose land and improvements are taken** — are both the moral centre and the legal basis of the case; a tight group of affected holders with a lawyer is worth more than a large, exposed crowd. **Protect people**: never expose named individuals unnecessarily, always obtain consent before recording anyone, be mindful of ethnic and regional sensitivities, and treat safety as the first constraint.

### PHASE 1: FOUNDATION (Weeks 1-4)

**Step 1a: Establish the facts, quietly.** Identify the developer (state or private), the ESIA authority, the certificate status, and the land and compensation body, and begin requesting the ESIA and the compensation assessment — including through any lender. Start the referenced file with the **holdings-and-improvements inventory**.

**Step 1b: Bring together the holders.** The strongest opposition is the group of **affected holders** — the farmers, pastoralists and homeowners whose use rights and improvements are taken. Their direct interest gives them standing to grieve compensation and to litigate. Build around them.

**Step 1c: Recruit a lawyer and a valuer — early.** The decisive early moves are securing a **lawyer experienced in land and compensation** and, ideally, a **valuer** who can show the compensation falls below the legal standard. These two relationships shape everything that follows.

### PHASE 2: PUBLIC LAUNCH (Weeks 4-12)

Note that "public" here means **entering the formal process**, not necessarily a demonstration — which may be unwise or unlawful for a state project.

**Step 2a: Object during the ESIA.** File a specific objection with the EPA or regional agency — certificate, alternatives, social impacts, consultation — and keep proof (Section 8B).

**Step 2b: Challenge the certificate status.** If the project lacks a valid certificate, or the sector licence was issued without one, raise it in writing with the licensing body (Section 8D).

**Step 2c: Grieve the compensation.** Lodge the compensation grievance on the amount, improvements and advance-payment requirements, and press the **resettlement** duty under Article 44 (Section 8C).

**Step 2d: Open the lender channel, if any.** For a financed project, file with the bank's **independent complaints mechanism** (Section 8E) — often the strongest and safest external route, and especially powerful on resettlement.

**Step 2e: Media, carefully.** Only where safe and lawful, and always framed in law and compensation, not politics (Section 10).

## PHASE 3: COALITION EXPANSION (Months 3-8)

**Step 3a: Broaden through institutions, not crowds.** Bring in legal-aid and land-rights initiatives, sympathetic academics, the land-governance forums, and — where safe — journalists who cover land and development responsibly. Each adds credibility and cover.

**Step 3b: Agree roles and, above all, safety rules.** Decide who speaks, who files, who holds the documents, and who maintains contact with counsel and any lender. Agree explicit rules on consent, on protecting individuals, and on ethnic and regional sensitivities.

**Step 3c: Use the international layer where it exists.** A development-bank complaint, or engagement with international bodies on land, resettlement and environment, can bring outside scrutiny that is harder to dismiss and safer for local people to stand behind.

## PHASE 4: SUSTAINED PRESSURE (Months 6-18)

**Step 4a: Litigate the compensation and any unlawful eviction.** Where the grounds are there, take the compensation and eviction claims to court — this is where communities most reliably improve their position. Mind the limitation periods.

**Step 4b: Follow the certificate and the assessment.** Test the final ESIA and the certificate conditions against your objections; where they were ignored, that failure is a ground, and the certificate's **audit and renewal** obligations are ongoing pressure points.

**Step 4c: Work any lender relentlessly.** A bank's resettlement action plan and complaints process can extract compensation, resettlement and delay that domestic pressure cannot, and its findings feed back into the domestic case.

**Step 4d: Use the Human Rights Commission and Ombudsman.** A complaint about displacement or maladministration creates an official record and can bring scrutiny, within their limits.

**Step 4e: Public actions — with great caution.** Demonstrations can be dangerous, especially against state projects and in sensitive regions. Where any public expression happens, keep it strictly lawful and non-political, and prioritise the safety of participants over visibility. In most Ethiopian cases, the compensation claim, the court and the lender achieve more than the street, at far lower risk.

## Worked example: a community that unlocks the strong levers

A block of farmland and grazing land is allocated to a private plantation, and holders face eviction with a low compensation offer and no resettlement. The instinct is to gather a crowd. What actually converts the situation into force happens differently, and more safely. First, a group of the **affected holders** — the people with clear standing — comes together quietly and builds a **holdings-and-improvements inventory**: each parcel, each home, each well and stand of trees, with dates and photographs, because those improvements are compensable rights. Second, they secure a **land-and-compensation lawyer** and a **valuer** who shows the offer is far below the legal standard. Third, they discover the plantation **holds no valid ESIA certificate**, and object; they **grieve the compensation** on amount, improvements and advance payment; and they press the **Article 44 resettlement** duty. Fourth, learning the plantation is financed by a development bank, they file with the bank's **complaints mechanism**, attaching the inventory and the valuation — the bank's land-and-resettlement standards are strong. Fifth, they argue that a taking for a **private plantation dressed as "public purpose"** is unlawful, and litigate the compensation and eviction. The plantation is not stopped by numbers in the street — which would have exposed them — but by a **community that unlocks** the certificate, the compensation, the constitution and the lender: compensation is raised, resettlement is provided, and the footprint is cut. The lesson generalises: **in Ethiopia you win with holding rights, a lawyer, a valuation, a clean legal file, and the safest external ally you can find — not with a crowd.**

## Opposition Building Budget: Year-Long Campaign

Low, with counsel and valuation as the main expenses. The recurring costs — document requests, printing, communications, travel to the agency, the committee or the court — are modest. The substantial costs are a **land-and-compensation lawyer** and a **valuation expert**, which is where money should go. Keep transparent accounts, avoid funding arrangements that could expose the group, and be candid with everyone that the realistic outcome against a state

project is better compensation, resettlement and delay, while a private project without a lawful certificate or on an unlawful taking can genuinely be stopped.

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## Hiring Help to Run the Campaign

You need not carry the whole campaign yourselves. A whole industry runs opposition campaigns for hire — the visible turnout at hearings, the public comment, the messaging and the media — known as **grassroots-for-hire** or **public-affairs / grassroots-advocacy** consulting. It usually serves whoever pays, most often the deep-pocketed side, but you can hire the same muscle for yours: **public-interest communications and PR firms, campaign and field-organising firms** that run turnout and canvassing, and, if the fight becomes a local vote, **ballot-measure consultants**. People outside that niche can carry a piece too — a **PR or crisis-communications firm, a campaign consultant, a digital-advocacy shop**, or a seasoned **community organiser** — taking weight off exhausted volunteers who feel they are carrying the opposition alone. Two rules hold. Hire them **transparently**, and never let anyone fake a grassroots front: that is *astroturfing* — dishonest, and ruinous if exposed; the aim is to amplify a real community, not fabricate one. And mind your **setting** — where public campaigning is repressed or dangerous this market may be absent and a visible "show" perilous, so favour trusted journalists and international allies over hired campaigners, and never let paid help expose your people.

## STEP 4: LEGAL CHALLENGES

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Ethiopia gives communities a genuine, if constrained, set of legal tools: a mandatory assessment, strong constitutional protections on eviction and compensation, and courts that hear compensation and procedural disputes. Three tracks — the assessment, the compensation and constitution, and the courts.

### TRACK 1: THE ASSESSMENT AND THE CERTIFICATE (the newest and cleanest ground)

- **The pre-licence certificate.** Under the new ESIA Proclamation, a project in a covered category needs a **valid ESIA clearance certificate** from the EPA or the regional agency **before** it is implemented, and the sector regulator must see it **before** licensing. A project without one, or a licence issued without it, is unlawful — often the strongest single point.
- **The broadened scope.** The new law requires assessment of **social, economic and cultural** impacts, not only environmental ones. An assessment that ignores displacement, livelihoods or culture is now deficient on the face of the law.
- **Alternatives and the management plan.** The law requires examination of **alternatives** and a real **Environmental and Social Management Plan**. Their absence or inadequacy is a reliable ground.
- **Consultation.** The law requires **meaningful, documented public consultation**. Absent or token consultation is a clean procedural defect.
- **Ongoing obligations.** The certificate carries **renewal, updating and audit** duties; non-compliance is a continuing, documentable ground.

### TRACK 2: THE COMPENSATION AND THE CONSTITUTION (where most is won)

- **Advance and adequate compensation.** The Constitution requires compensation to be paid **in advance** for public-purpose expropriation, and the law requires compensation for **improvements and displacement**. Where compensation is below the legal standard, unpaid in advance, or omits improvements, that is a strong and winnable ground.
- **The grievance channel.** The **amount** of compensation can be contested through the grievance committees and the courts — even though the **purpose** of the taking usually cannot. Focus your fire where it can land.
- **Protection against arbitrary eviction.** Article 40 protects holders and pastoralists against arbitrary eviction. An eviction carried out without lawful process, notice or the required compensation is challengeable.
- **The resettlement duty.** Article 44 entitles those displaced by development to **resettlement or compensation**. A project that displaces without a genuine resettlement plan breaches this.
- **"Public purpose" dressed over private gain.** Where land is taken for a **private commercial project** under the banner of public purpose, that characterisation can be tested — one of the few ways to reach the purpose itself.

### TRACK 3: THE COURTS AND THE INTERNATIONAL LAYER

- **The courts.** The regular courts hear **compensation disputes, unlawful-eviction claims, and property and improvement rights**. They are constrained in politically sensitive matters, but for compensation and clear procedural breaches they are a genuine route. Mind the **limitation periods** and seek interim relief where eviction is imminent.
- **The development-bank complaints mechanism.** Where an international lender finances the project, its **independent accountability mechanism** can review it against the bank's environmental and social — and especially its **land acquisition and resettlement** — standards, often delivering scrutiny, compensation, resettlement and delay beyond domestic reach, through a channel safer for local people.
- **The Human Rights Commission and the Ombudsman.** For displacement and maladministration, a complaint creates a record and can bring scrutiny, within their limits.
- **Regional human-rights bodies.** For serious, well-documented violations, regional human-rights mechanisms may be a longer-term avenue.

## The three legal challenge types

### TYPE 1: THE ASSESSMENT AND CERTIFICATE

The pre-licence certificate, the broadened social scope, alternatives, the management plan, consultation, and the ongoing obligations.

### TYPE 2: THE COMPENSATION AND CONSTITUTION

Advance and adequate compensation, the grievance channel, protection against arbitrary eviction, the resettlement duty, and testing "public purpose".

### TYPE 3: THE COURTS AND INTERNATIONAL LAYER

The courts, the lender's complaints mechanism, the Human Rights Commission and Ombudsman, and regional human-rights bodies.

## Legal Strategy Decision Tree

1. **Who is the developer — private or state?** → Sets the ceiling; for state projects, read Section 13 and lead with compensation, resettlement and any lender.
2. **Is there a valid ESIA certificate?** → If not, that is often your cleanest and strongest ground.
3. **Is the compensation at the legal standard, paid in advance, covering improvements, with resettlement?** → If not, grieve and litigate it.
4. **Is a taking for private gain dressed as "public purpose"?** → Test the characterisation.
5. **Is there an international lender?** → File with its complaints mechanism; it is often the strongest and safest route, especially on resettlement.

## Litigation and Advocacy Success Factors

Standing through **holding rights**; a **land-and-compensation lawyer** engaged early; a **valuation** and a **technical critique**; a precise ground — no valid certificate, below-standard or advance-unpaid compensation, absent resettlement, unlawful eviction, or private gain dressed as public purpose; a **lender complaint** where financed; and every argument framed in **law and compensation, not politics**, for effect and for safety.

## What to Avoid

Framing the case politically; missing the certificate window, the compensation grievance period, or the court limitation; under-documenting improvements; relying on street mobilisation against a state project; exposing individuals; and overstating the science or the valuation, which is quickly used against you.

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## TURNING YOUR EVIDENCE INTO ARGUMENTS

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Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that work in Ethiopia.

**Project proceeding without a valid ESIA certificate → unlawful under the new Proclamation.** Feed it with: the

certificate status and the licence date; a licence issued without sight of a certificate is exposed.

**Assessment ignores displacement, livelihoods or culture → breach of the broadened social scope.** Feed it with: the study's silence, set against the new law's requirements.

**No genuine analysis of alternatives, or no real management plan → inadequate assessment.** Feed it with: the study's own text.

**Consultation absent or token → procedural defect.** Feed it with: the (missing) consultation record and the community's un-answered concerns.

**Compensation below standard, advance-unpaid, or omitting improvements → breach of the Constitution and Expropriation law.** Feed it with: the valuation, the offer, and the improvements inventory.

**Displacement without a resettlement plan → breach of Article 44.** Feed it with: the displacement and the absent resettlement.

**Eviction without lawful process → breach of Article 40.** Feed it with: the notice (or its absence) and the process used.

**Private plantation or investor project taken as "public purpose" → the characterisation can be tested.** Feed it with: the beneficiary's private, commercial nature.

The pattern: **lead with the certificate and the compensation, support with consultation and resettlement, evidence everything — especially improvements — and never argue politics.**

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## STEP 5: MEDIA STRATEGY

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Media in Ethiopia must be handled with unusual care. Used well and lawfully, it raises the cost of a visibly illegal or damaging decision and draws in lawyers, experts and — for financed projects — international attention. Used carelessly, it can expose people to real risk and can be counter-productive against a state project or in a sensitive region. **Frame everything in law, compensation and the constitution, never in politics or ethnicity, and prioritise safety over reach.**

### How Journalists Actually Work

Reporters need a hook, a document, and a credible source. Give them the certificate status, the valuation showing compensation below standard, the improvements inventory, an expert or lawyer willing to speak, and the deadline approaching. Keep it factual and lawful; never hand over anything that endangers a named individual without full consent.

### The Newsworthiness Formula

Stakes + a clear legal or compensation failure + a documented breach + a strong image = coverage. Angles that travel in Ethiopia: **communities displaced without lawful compensation or resettlement, a project financed by an international bank against its own resettlement standards, and land taken for a private investor under the banner of public purpose.** Human-interest angles are real but must be handled with consent and care.

### Know the Outlets That Cover This Beat

Map the **land, development and environment reporters** at credible outlets; the **specialist and diaspora press**; and **international outlets and the trade press around any lender**, which can cover a financed project's resettlement story with less local risk. Choose outlets that report responsibly and protect sources.

### Building Reporter Relationships (The Key)

Give reporters accurate, sourced, lawful material and become a reliable contact. One trusted relationship beats a dozen releases. Offer the lawyer and the valuer, and be scrupulously accurate: in a sensitive environment, one overstatement is used against the whole campaign and can raise the risk to participants.

### Why media matters even when it doesn't make the front page



Coverage reaches the lawyer who will take the case, the lender's accountability office, officials who prefer projects not to become visibly unlawful, and institutions that might scrutinise, and it builds a dated record. But weigh every story against the safety of the people in it.

## Sample Media Timeline

Only where safe: launch when the certificate, compensation offer or eviction becomes public; refresh at the certificate challenge, the compensation grievance, the lender filing, the court case, and any decision. Let the lawful legal milestones drive the coverage.

## Media Measurement

Track coverage, but measure what matters: whether the certificate is scrutinised, whether compensation is raised, whether resettlement is provided, whether the assessment is redone, whether a lender opens a review, and whether the court acts — all without harm to anyone involved.

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## Amplifying at Scale — Media Help for Hire

Beyond pitching reporters yourselves, you can pay to spread the story at scale — different from a single advert or one call to a local outlet, and available at any reach from local to global. **Public-relations and communications firms** run earned-media campaigns — placing op-eds, orchestrating coverage, staging the media push; for the cause side, public-interest firms such as Fenton, BerlinRosen and M+R work for advocacy groups and unions, not only corporations. **Press-release / newswire distribution services** send a release across a wide network of journalists and outlets — PR Newswire, Business Wire and GlobeNewswire at the global, higher-budget end; EIN Presswire, PRWeb and eReleases far cheaper and nonprofit-friendly, some with cause-specific wires. And **digital and social amplification** shops run targeted paid campaigns and creator partnerships. Two rules: amplify a *true* story from a *real* community — never manufacture fake outrage; and where public visibility is dangerous, favour trusted journalists and international allies over paid amplification.

## EMAILS & LETTERS

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Ready-to-adapt templates. Keep them factual, referenced and lawful — in Ethiopia, tone and framing are also a safety matter. Address them to the correct body, in Amharic or the relevant regional working language where the recipient is an Ethiopian authority, and keep proof of every submission. Frame every argument in **law, compensation and the constitution**, never in politics or ethnicity. Where a project is state- or security-linked, take advice before sending anything that names individuals.

### 8A. Email to a reporter (story pitch)

**Subject:** [Project] at [location] — [families] displaced without lawful compensation, and no valid ESIA certificate

Dear [name],

[Developer] is proceeding with [project] at [location], displacing [number] holders from farmland and grazing land. On the information available, the project [holds no valid ESIA clearance certificate / was licensed without one], contrary to the 2025 ESIA Proclamation, and the compensation offered is far below the legal standard, with no resettlement plan as the Constitution requires.

Under Article 40, expropriation for public purpose requires compensation paid in advance, including for improvements, and Article 44 requires resettlement of those displaced. [Lawyer / expert name] can speak to the legal and valuation merits.

[Where relevant: The project is financed by [bank], whose land and resettlement standards it appears to breach.]

I can share the file and put you in touch with [expert]. Documents available on request.

[Name] · [group, if any] · [contact]

### 8B. Objection filed during the ESIA

**To:** [The EPA / the Regional Environmental Agency] **Re:** Objection to the environmental and social impact

### assessment for [project], [location]

We, holders and residents affected by the above project, submit the following observations.

**1. Certificate.** We are not aware that a valid ESIA clearance certificate has been issued for this project; if licensing has proceeded without one, it is contrary to the ESIA Proclamation.

**2. Social, economic and cultural impacts not assessed.** The assessment [omits / inadequately addresses] displacement of [number] holders, loss of grazing and livelihoods, and [heritage/sacred sites], contrary to the broadened scope of the new law.

**3. Alternatives and management plan.** The assessment [names no alternatives / lists them without analysis] and lacks an adequate Environmental and Social Management Plan.

**4. Consultation.** The required meaningful, documented public consultation [did not occur / was a formality]; our concerns are not recorded or answered.

We request that these matters be addressed before any certificate or licence is issued.

[Names, holding details, date]

## 8C. Compensation grievance and resettlement claim

**To: [The compensation assessment committee / the woreda / city land administration] Re: Grievance on compensation and resettlement — [project], [location]**

We, the affected holders listed below, grieve the compensation and resettlement for the above expropriation: 1.

**Amount below standard.** The compensation offered does not reflect the value of our holdings, and omits or undervalues our **improvements** — [buildings, wells, terraces, trees] — for which we are entitled to compensation. 2.

**Advance payment.** Compensation has not been paid in advance as the Constitution requires. 3. **Resettlement.** No genuine resettlement or rehabilitation has been provided, contrary to Article 44. 4. **Displacement compensation.** The displacement compensation does not meet the legal standard.

Our improvements inventory and a valuation are attached. We request reassessment, advance payment at the legal standard, and a resettlement plan, and reserve our right to the courts.

[Names, holdings, date]

## 8D. Letter on the missing certificate to the licensing body

**Re: [Project] at [location] — request to withhold or suspend licensing absent a valid ESIA certificate**

To [the Ethiopian Investment Commission / the relevant sector authority]:

Under the ESIA Proclamation, a valid ESIA clearance certificate from the EPA or the regional environmental agency is a precondition for licensing a project in this category. On the information available, [project] [holds no such certificate / was licensed without sight of one].

We request that no licence be issued or renewed until a valid certificate is in place, and that any licence issued without one be reviewed. Our objection is attached.

[Name, standing, date]

## 8E. Complaint to a development bank's accountability mechanism

**Subject: Request to the [bank] independent accountability mechanism — [project], Ethiopia**

To the [Independent Accountability / Complaints] Mechanism, [bank]:

We are holders displaced by [project] at [location], financed by [bank]. We believe the project does not comply with [bank]'s environmental and social standards, in particular on **land acquisition and involuntary resettlement**: 1.

**Assessment** — no valid or adequate ESIA; social, economic and cultural impacts not properly assessed. 2.

**Consultation** — meaningful consultation with affected holders did not take place. 3. **Compensation** — below replacement value, advance payment not made, improvements omitted. 4. **Resettlement** — no genuine resettlement or livelihood restoration.

We request registration, a compliance review, and — given imminent [eviction] — interim measures. Our holdings inventory, valuation and file are attached.

[Names, contact, date]

## 8F. Letter to the land administration before eviction

### Re: [Location] — request to halt eviction pending lawful compensation and resettlement

To [the woreda / city land administration]:

We understand eviction is planned at [location] for [project]. Under Article 40 of the Constitution, holders are protected against arbitrary eviction, expropriation requires compensation **paid in advance** including for improvements, and Article 44 requires resettlement of the displaced.

On the information available these requirements have not been met: [summarise — no advance payment, improvements omitted, no resettlement plan, defective notice]. We request that the eviction be halted until compensation and resettlement are lawfully provided, and that our grievance (attached) be placed on the file.

[Names, holdings, date]

## 8G. Press release (effective)

### FOR IMMEDIATE RELEASE — [date]

#### Holders challenge [project] over unlawful compensation and missing environmental clearance

Affected holders at [location] have formally challenged [project] by [developer], on the grounds that it is displacing [number] families [without a valid ESIA clearance certificate / with compensation far below the legal standard] and without the resettlement the Constitution requires.

"[Short factual quote from the lawyer or valuer on the legal or valuation merits]," said [name, role].

Under the 2025 ESIA Proclamation a clearance certificate is a precondition for licensing, and under Article 40 of the Constitution expropriation requires advance compensation, including for improvements, with resettlement under Article 44. The holders have [objected to the EPA / grieved the compensation / filed with (bank)'s complaints mechanism].

**Contact:** [name, contact]. Documents available on request.

## 8H. Letter to a legal-aid or land-rights initiative

### Re: Request for assistance — [project], [location]

To [legal-aid / land-rights initiative]:

We are [number] holders facing displacement by [project] at [location]. Our concerns are: no valid ESIA certificate; compensation below the legal standard and omitting our improvements; no resettlement as Article 44 requires; and [a private taking dressed as public purpose].

We would be grateful for legal assistance, a valuation, and guidance on the compensation grievance and any court challenge. We can provide our holdings inventory, the offer and the assessment.

[Name, standing, date]

## Important Caveat

Templates are starting points. Adapt every one to the real project, cite the actual documents and the specific provisions, and attach the improvements inventory and any valuation. Three things to remember above all in Ethiopia: **frame everything in law, compensation and the constitution, never in politics or ethnicity**, for effect and for safety; **mind the deadlines** — the certificate stage, the compensation grievance window, and eviction notices; and **protect people** — obtain consent, avoid exposing individuals, and take advice before acting against a state project. Keep proof of every submission.

## IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Ethiopian campaigning rewards a small number of precise, lawful acts, and most are inexpensive — in rough order of

impact, and read the safety note at the end first:

1. **Identify the developer, and whether it is private or state.** This one fact sets your whole strategy and your risk. Private and investor projects without a lawful certificate or on an unlawful taking are genuinely challengeable; flagship state projects taken for public purpose are usually, at best, better-compensated or delayed — and carry more risk to oppose.
2. **Build the holdings-and-improvements inventory.** Each parcel, home, well, terrace and stand of trees, with dates and photographs. Improvements carry compensation rights — undocumented ones are compensation lost.
3. **Check the ESIA certificate.** Does the project hold a **valid clearance certificate** from the EPA or the regional agency? If not, or if it was licensed without one, that is often the strongest single point (Section 8D).
4. **Grieve the compensation.** Challenge the amount, the omission of improvements, the lack of advance payment, and the absent resettlement (Section 8C).
5. **Get the ESIA** — from the EPA, the regional agency, or, if a bank finances the project, the **bank's project page**, often the easiest source.
6. **File with the lender's complaints mechanism** if the project is financed (Section 8E) — often the strongest and safest route, and especially powerful on resettlement.
7. **See a land-and-compensation lawyer about deadlines** the moment a certificate, offer or eviction notice appears.

If you do only the first three, you have identified who is behind the project, protected your compensation rights, and found the point the whole case may turn on. That is a real, low-risk contribution.

**Safety note.** Frame everything in law and compensation, not politics or ethnicity. Do not expose individuals. Take advice before acting against a state project or in a sensitive region. Nothing here is worth harm to you.

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## WHEN THE SYSTEM IS TILTED

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Ethiopia's system is tilted several ways at once: toward development and the state, through **state ownership of land**, and against open organising. Naming this honestly is what lets you choose tools that work and stay safe.

### What This Tilt DOES (and DOESN'T DO)

The tilt means **all land is state-owned**, which makes taking it easier; "**public purpose**" is **broad**, extending even to private commercial projects, and **the purpose usually cannot be appealed; compensation is low; civic space is constrained** and protest can be dangerous, especially in sensitive regions; assessments are paid for by the proponent; and many big projects are national priorities the government defends firmly. It does **not** close every door: the **ESIA certificate is now a mandatory precondition**; the Constitution protects against **arbitrary eviction** and requires **advance compensation** and **resettlement**; the **amount** of compensation and the **manner** of eviction are contestable; **improvements** carry their own compensation rights; and where a project is **internationally financed**, the lender's land-and-resettlement standards and complaints mechanism provide a powerful, comparatively safe external route.

### Reading Your Tilt: Responsive, Mixed, Entrenched

- **A private or investor project without a lawful certificate, ideally financed by a development bank.** The most workable case: the certificate, the compensation, the "public purpose" argument, the courts and the lender are all genuinely open.
- **Mixed.** A project with state involvement but also private actors, or one where the compensation grounds are strong but the political weight is heavy. Weight shifts to compensation, resettlement, the lender, and strictly lawful, documentary tactics.
- **Entrenched.** A flagship national project taken for public purpose. Assume cancellation is not available and street opposition is unsafe; concentrate on **better compensation, genuine resettlement, mitigation, and delay, and the lender route if any**, keep everything lawful and low-exposure, and build the record — sometimes the realistic win is a better-compensated, resettled outcome, not a stopped project.

### Documented Ethiopian Dynamics

The record shows real legal tools inside a heavily constrained space. **The certificate is now a real gate** — the 2025 ESIA Proclamation makes a clearance certificate a precondition for licensing, and broadens assessment to social, economic and cultural impacts. **Compensation is where most is won** — the purpose of a taking is hard to reach, but the amount, the improvements, the advance-payment rule and the resettlement duty are contestable, and this is where communities

most improve their position. **The constitutional protections are real but under-honoured** — Article 40's guarantee against arbitrary eviction and advance compensation, and Article 44's resettlement duty, are genuine standards the state routinely under-delivers, which is why holding it to them has purchase. **Land is state-owned and "public purpose" is broad** — extending to private commercial projects, and with no appeal of the purpose, which is the core of the tilt. **Civic space is constrained** — organising must be lawful, quiet and built around holding rights. **And international finance changes the odds** — a development bank's land-and-resettlement standards and complaints mechanism have repeatedly delivered scrutiny and remedies beyond domestic reach. The lesson: **fight on the certificate, the compensation and the constitution, use the courts and any lender, organise lawfully and safely, and calibrate the goal to who is building.**

## Assessment Framework — Determine Your Situation

Ask: is the developer **private or state**? Is there a **valid ESIA certificate**? Is the **compensation** at the legal standard, paid in advance, covering improvements, with **resettlement**? Is a **private taking dressed as "public purpose"**? Is there an **international lender**? Which **region** governs, and how independent is its agency and land body? Can we secure a **land-and-compensation lawyer** and a **valuer**? The answers tell you whether to fight on the certificate, the compensation, the constitution, the courts, the lender — or, for an entrenched state project, better compensation and resettlement — and how much personal risk is involved.

## Direct Action: Factual Information (Descriptive, Not Prescriptive)

Public demonstrations in Ethiopia can carry serious personal risk, particularly against state projects and in politically or ethnically sensitive regions; assembly is constrained and can lead to detention. This guide does not recommend street action as a primary tactic. The effective and far safer arena is **documentary and legal**: the improvements inventory, the certificate challenge, the compensation grievance, the resettlement claim, the court case, and the lender's mechanism. Where any public expression occurs, it must be strictly lawful, factual and non-political, and the safety of participants comes before visibility. **Your legal and compensation file, not your numbers, is your power here — and it is also your protection.**

## Honest Assessment

Tilted fights are harder, and Ethiopia's is tilted by state land ownership, a broad public-purpose power, and a constrained civic space. But "harder" is not "hopeless": the certificate is now a real gate, compensation and resettlement are genuinely contestable, the constitutional protections are real standards, improvements carry rights, and international finance opens a powerful external door. Concentrate force where the tilt is weakest — **the certificate, the compensation, the resettlement, and any lender** — work lawfully and protect people, and measure success in compensation, resettlement, conditions, siting and delay. Against a private project without a lawful certificate, that can amount to stopping it; against a state project, to a better-compensated, resettled, less harmful outcome.

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## WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

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Ethiopian development decisions are shaped less by ordinary bribery than by **state power over land and structural interest**: the state owns and allocates the land, "public purpose" is broad, and compensation is kept low. Read your situation actor by actor, and — even more than elsewhere — **publish documents, not accusations**: unproven allegations against officials carry real legal and personal risk in Ethiopia, and ethnic framing can be dangerous.

**The land allocation.** Where state-owned land is allocated cheaply to an investor and taken from holders under "public purpose", the structural conflict is plain. Signs: a private beneficiary, low compensation, a vague public-purpose justification. Lever: test the "public purpose" characterisation, and grieve the compensation — argued as law, not fraud.

**The assessment's author.** Prepared by an accredited professional at the proponent's cost. Signs: social and displacement impacts assessed away, alternatives absent, consultation staged. Lever: the technical critique and the new law's broadened requirements.

**The compensation valuation.** Set by bodies close to the taking authority. Signs: improvements omitted, values far below replacement cost, no advance payment. Lever: an independent valuation, the grievance and the courts.

**The regional-federal seam.** Independence and capacity vary by region; a regional agency or land body may be close to

a regional priority. Signs: a regional beneficiary and a regional regulator. Lever: the federal standard, the courts, and any lender.

**State enterprises and priority projects.** Where the developer is a state enterprise or a flagship priority, ordinary accountability is weakest and personal risk highest. Signs: opacity around finance and decision-making. Lever: the lender route if financed; the strictly legal and compensation grounds; and great caution about what is said publicly.

**International finance as a check on capture.** The most useful leverage where domestic accountability is weak: a development bank's land-and-resettlement standards and complaints mechanism can scrutinise a project its domestic sponsors would prefer to wave through.

**How to act on it, safely.** Document from official sources — the gazettes, EPA and land records, the compensation valuation, lender disclosure, company filings — before you say anything. Route genuine concerns through the **lawful channels**: the objection, the compensation grievance, the certificate challenge, the court, the lender's mechanism, and the Human Rights Commission or Ombudsman. **Do not publish unproven accusations against named officials, and avoid ethnic framing** — in Ethiopia both can expose you to serious risk, and a documented, legal file is both safer and stronger. The record, not the allegation, is what moves a decision here — and what keeps you safe.

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## INTEGRATION & TIMELINE

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The five steps run in parallel and reinforce each other. In Ethiopia the timeline is driven by three hard points you do not control: the **ESIA certificate stage**, the **compensation and grievance timetable**, and any **eviction notice** — often very short. Work backwards from all three, and build the file from day one.

### Realistic 12-Month Campaign Timeline

**Weeks 1-4 (Identify, quietly, and secure counsel).** - Establish the **developer** (private or state), the **ESIA authority**, the **certificate status**, and the **land and compensation body**. - Begin the **holdings-and-improvements inventory** — the foundation of the compensation case. - Request the **ESIA** and the **compensation assessment** — from the authority and any **lender**. - Engage a **land-and-compensation lawyer** and a **valuer**. - Start the referenced file; treat safety as the first rule.

**Weeks 4-12 (Enter the process).** - File the **objection** during the ESIA — certificate, social impacts, alternatives, consultation (Section 8B). - Raise the **missing certificate** with the licensing body (Section 8D). - Lodge the **compensation grievance** and the **resettlement claim** (Section 8C). - Open the **lender complaint** if the project is financed (Section 8E). - Media only where safe and lawful, framed in law and compensation (Section 10).

**Months 3-6 (Build the legal and compensation case).** - Obtain the **valuation and technical critique**; test the ESIA and the compensation against the law and any lender standards. - Where eviction looms, seek to **halt** it pending lawful compensation and resettlement (Section 8F), and seek interim relief. - **Litigate** the compensation and any unlawful eviction within the limitation period. - Broaden through **institutions**, not crowds.

**Months 6-12 (Press the courts and the lender).** - Pursue the **compensation and eviction** cases; this is where communities most reliably improve their position. - Work the **lender's complaints process** for review, compensation, resettlement and delay. - Track the **certificate's audit and renewal** obligations; each is a fresh, lawful pressure point. - Consolidate the record; keep participants safe and the framing legal.

**Beyond 12 months.** - Litigation and lender reviews run on long timetables; sustain both. - Monitor implementation and certificate compliance; each violation is a fresh ground. - Watch for **new phases, re-allocation or re-licensing**, which reopen the argument. - For state projects, keep pressing for **better compensation, resettlement and mitigation** even where cancellation is out of reach.

### Warning Signs — Act Early

A land allocation or decree in a gazette; survey markers or valuation teams on holdings; a licence moving before a visible certificate; short-notice eviction papers; a private investor receiving state land under "public purpose"; clearing of grazing land, forest or wetland; a development-bank project page appearing. Each is a trigger to **build the improvements inventory and request the certificate and compensation that week**, and to **see a lawyer about deadlines** — because the certificate stage, the grievance window and eviction notices are short.



## Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: identify the **developer** and calibrate to it; build the **holdings-and-improvements inventory** early; secure a **lawyer and a valuer**; lead with the **certificate** and the **compensation**; press the **constitutional protections** — arbitrary eviction, advance compensation, resettlement; use any **lender's mechanism**; litigate within the deadlines; organise **lawfully and safely** through holding rights and institutions; and frame everything in **law and compensation, never politics or ethnicity**. Losing campaigns: fight politically; rely on crowds against state projects; miss the deadlines; under-document improvements; expose individuals; and treat the street as the main arena.

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## FINAL ASSESSMENT

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### Real Outcomes: What Winning Looks Like

"Winning" in Ethiopia depends heavily on who is building, and naming the realistic outcomes honestly is the point: - **higher, properly-assessed compensation**, paid in advance and covering improvements; - genuine **resettlement and rehabilitation** under Article 44, instead of bare eviction; - a project **blocked or paused** for lack of a valid ESIA certificate; - an assessment **redone** after missing social impacts, alternatives or consultation are exposed; - **conditions, mitigation and monitoring** written into the certificate; - a **development-bank review** forcing compensation, resettlement, redesign or delay; - an **eviction halted** where the process was unlawful; - a project **relocated or reduced** off protected land, forest or a water source; - and, for a genuinely private project without a lawful certificate or on an unlawful "public purpose" taking, a **stop**.

What is usually not available is the outright cancellation of a flagship national project taken for public purpose. Against those, plan for **better compensation, resettlement, mitigation and delay**, and treat a better-compensated, resettled, less harmful outcome as the real win — while keeping everyone safe.

### Decision Point: Continue, Modify, or Reassess

Reassess honestly, and safely, at each milestone. If the developer is a **flagship state project taken for public purpose**, accept early that cancellation is unlikely and street opposition is unsafe, and concentrate on compensation, resettlement, the lender route and the legal record. If the developer is **private or an investor**, the certificate, the compensation, the "public purpose" argument and the courts are genuinely open — invest in counsel and a valuer, and press hard. If the project is **financed**, make the lender's complaints mechanism central, especially on resettlement. If a **certificate, compensation offer or eviction notice** appears, the clock is running — the windows are short. And at every step, weigh each action against the safety of the people involved: in Ethiopia, the legal and compensation file is both the most effective tool and the safest one.

### The Bottom Line

Ethiopia gives communities a real, if constrained, set of tools. The **2025 ESIA Proclamation makes a clearance certificate a mandatory precondition** for licensing, broadens assessment to **social, economic and cultural** impacts, and requires **meaningful public consultation** — a genuine gate, and a project without a certificate, or licensed without one, is exposed. The **Constitution** protects holders against **arbitrary eviction**, requires **advance compensation** including for the **buildings and improvements** people create, and, under **Article 44**, entitles the displaced to **resettlement** — real standards the state routinely under-delivers, which is exactly why holding it to them has purchase. The **amount** of compensation and the **manner** of eviction are contestable through the grievance committees and the courts, and where a project is **internationally financed**, the lender's land-and-resettlement standards and independent complaints mechanism open a powerful and comparatively safe external route. The honest limits are severe and must shape your plan: **all land is state-owned, "public purpose" is broad and its purpose usually cannot be appealed, compensation is low, and civic space is constrained** — against a flagship state project, the realistic win is better compensation, resettlement, mitigation or delay. But private and investor projects without a lawful certificate, on unlawful takings, or dressed as "public purpose" for private gain are genuinely challengeable, and communities that identify the developer, build the improvements inventory, secure counsel and a valuer, lead with the certificate and the compensation, press the constitutional protections, use any lender, and litigate — all lawfully, and with people's safety first — have raised compensation, secured resettlement, delayed and stopped real projects. No single step wins; the combination does. Start today by answering one question, quietly: **who is the developer, and does this project hold a valid ESIA certificate?**